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City of Canfield - Utility Workers Union of America

AGREEMENT BETWEEN THE

CITY OF CANFIELD

AND

**UTILITY WORKERS OF AMERICA,
AFL-CIO**

Effective Date of 1/1/24 through 12/31/2026

TABLE OF CONTENTS

<u><i>Name of Article</i></u>	<u><i>Article #</i></u>	<u><i>Page #</i></u>
Preamble/Purpose	(Article 1)	Pg. 3
Union Recognition	(Article 2)	Pg. 3
No Strike/No Lockout	(Article 3)	Pg. 3
Dues Deduction	(Article 4)	Pg. 4
Union Responsibilities	(Article 5)	Pg. 5
Union Representation	(Article 6)	Pg. 5
Purpose for Negotiations & Contract Construction	(Article 7)	Pg. 7
Employee Rights	(Article 8)	Pg. 7
Management Rights	(Article 9)	Pg. 8
Work Rules and Regulations	(Article 10)	Pg. 9
Working Conditions	(Article 11)	Pg. 10
Corrective Action	(Article 12)	Pg. 10
Grievance Procedure	(Article 13)	Pg. 12
Probationary Periods	(Article 14)	Pg. 15
Commercial Driver's License, Insurability	(Article 15)	Pg. 15
Compensation	(Article 16)	Pg. 15
Hours of Work/Overtime	(Article 17)	Pg. 17
Clothing Allowance	(Article 18)	Pg. 18
Insurance	(Article 19)	Pg. 19
Vacations	(Article 20)	Pg. 19
Holidays	(Article 21)	Pg. 20
Paid Leave	(Article 22)	Pg. 21
Labor/Management Meetings	(Article 23)	Pg. 25
Medical Examinations/Disability Separation	(Article 24)	Pg. 26
Layoffs	(Article 25)	Pg. 26
Waiver in case of emergency	(Article 26)	Pg. 27
Sick Leave and Vacation Buy Back	(Article 27)	Pg. 27
Term of Agreement	(Article 28)	Pg. 28
Signature Page		Pg. 30

1
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4 **ARTICLE 1**
5 **PREAMBLE/PURPOSE**

6 **Section 1.1 Purpose.** The City of Canfield, hereinafter referred to as the “Employer,” and the
7 Utility Workers of America, and its Local 425 hereinafter referred to as the “Union,” enter into the
8 following Agreement for the wages, hours, terms and other conditions of employment as
9 specifically included in this Agreement for the employees in the bargaining unit.

10 **Section 1.2 Definitions.** The following definitions apply when the terms are used in this
11 Agreement.

12 **Day - “Day”** shall mean a calendar day unless specified otherwise.

13
14 **Seniority - “Seniority”** shall be interpreted to mean and be computed on the basis of
15 continuous full-time service with the Employer in a bargaining unit classification.
16

17
18 **ARTICLE 2**
19 **UNION RECOGNITION**

20
21 **Section 2.1 Bargaining Unit and Exclusions.** The following is the bargaining unit as certified
22 in SERB Case 2018-REP-12-0124:

23
24 **Included:** All full and part-time employees in the positions in the classification of Public
25 Works Laborer

26
27 **Excluded:** Supervisory, Professional, seasonal and any others excluded by the Act.
28

29
30 **ARTICLE 3**
31 **NO STRIKE/NO LOCKOUT**

32
33 **Section 3.1 No Strike.** Inasmuch as this Agreement provides machinery for the orderly
34 resolution of grievances, the Employer and the Union recognize their mutual responsibility to
35 provide for uninterrupted services to the citizens of the City of Canfield for the life of this
36 Agreement.

37
38 The Union agrees that neither it, its officers, agents, representatives, or members, will authorize,
39 instigate, cause, aid, condone or participate in any strike, work stoppage, or any other interruption
40 of operations or services of the Employer by its members.

41
42 When the Employer notifies the Union that any of its members are engaged in any such strike
43 activity, as outlined above, the Union shall immediately, conspicuously post notice over the
44 signature of an authorized representative of the Union to the effect that a violation is in progress
45 and such notice shall instruct all employees to immediately return to work. Additionally, the
46 Employer shall have the option of seeking any appropriate legal remedies. Any employee failing
47 to return to work after notification by the Union as provided herein, or who participates or
48 promotes such strike activities as previously outlined, may be discharged, and only the question

of whether or not he/she did in fact participate in or promote such action shall be subject to appeal.

Section 3.2 No Lockout. The Employer agrees that neither it, its officers, agents, or representatives, individually or collectively, will authorize, instigate, cause, aid, or condone any lockout of members of the Union for the life of this agreement.

ARTICLE 4 **DUES DEDUCTIONS**

Section 4.1 Dues/Fees Deduction. The Employer agrees to deduct from the wages of any employee, who is a member of the Union, membership dues, initiation fees, re-initiation fees, and/or uniformly levied assessments. The Union will notify in writing, the City Manager annually each January of the dues it charges and its current membership. The Union will update membership information as needed. Employees shall submit to the City the Union designated form for dues/fees deductions. A one-month advance notice must be given to the payroll clerk prior to any change in dues deductions. All dues collected shall be submitted to the Secretary Treasurer of the UWUA Local 425 in twenty-four (24) equal installments to the person designated in writing by the Union.

The Employer shall be relieved from making individual dues/fees deduction payments to the Union when a member:

- (1) resigns or is separated from Employer employment;
- (2) is laid off from Employer employment;
- (3) provides written revocation of dues deduction authorization submitted by the employee to the Employer;
- (4) is on an unpaid leave of absence when the dues deduction would otherwise be due;
- (5) at any time when dues are otherwise due, fails to receive sufficient wages to make all legally required deductions in addition to the deduction of Union dues, provided that all member's dues shall thereafter be deducted in the first available pay period in which the member has sufficient wages to make the dues deduction in addition to all legally required deductions; and
- (6) when the employee is no longer a member of the bargaining unit.

Section 4.2 Error in Deduction. It is agreed that neither the bargaining unit member nor the Union shall have a claim against the Employer for errors in the processing of deductions unless a claim of error is made to the Employer in writing within thirty (30) days after the date such an error is claimed to have occurred. If an error is found to have occurred, it will be corrected at the next pay period that dues would normally be deducted.

Section 4.3 Indemnification. It is specifically agreed that the Employer assumes no obligation, financial or otherwise, arising out of provisions of this Article. The Union hereby agrees that it will indemnify and hold the Employer harmless from any claims, actions, or proceedings by any employee arising from deductions made pursuant to this Agreement. Once the funds are remitted to the Union, their disposition thereafter shall be the sole and exclusive obligation and responsibility of the Union. The parties agree and understand that if an employee(s) files an action(s) against the Employer and/or Union regarding the deductions made under this

1 Article, the deductions for those employees shall cease immediately until disposition is
2 determined.

3
4 In the event an action, claim or proceeding is filed or commenced regarding any fees, assessments
5 or dues deducted pursuant to this Article, the Union agrees it shall compensate or reimburse the
6 Employer all its costs, fees, and attorney fees the Employer incurs arising from such administrative
7 personnel of the Employer, including attorney's fees, involved in defending or responding to
8 claims, actions, etc., regarding dues, fees, etc., the Employer collected on behalf of the Union by
9 the Employer.

10
11 **ARTICLE 5**
12 **UNION RESPONSIBILITIES**
13

14 **Section 5.1 Duty of Fair Representation.** The Union recognizes its responsibility as
15 bargaining agent and agrees to equally represent all employees in the bargaining unit without
16 discrimination, interference, restraint, or coercion.

17
18 **Section 5.2 Non-interference.** The Union agrees not to interfere with the rights of employees
19 to not become members of the Union, and there shall be no discrimination, interference, restraint,
20 or coercion by the Union or its representatives against any employee exercising the right to abstain
21 from membership in the Union or involvement in Union activities. Employer agrees not to coerce
22 or discriminate against anyone choosing to join the Union.

23
24 **Section 5.3 Compliance with ADA.** The Employer and Union agree to comply with the
25 Americans with Disabilities Act (ADA). In the event an employee requests reasonable
26 accommodation to a disability covered by the ADA, the Union and Employer shall immediately
27 meet to discuss possible accommodations which do not create a hardship on the City. In the event
28 the Union and City Manager cannot agree on an accommodation, the Employer shall take any
29 action he deems necessary and/or required under the law to comply with his duty to provide
30 reasonable accommodation.

31
32 **Section 5.4 Employee Conduct Expected.** The Employer and the Union will not tolerate
33 conduct by any employee which harasses, disrupts, or interferes with others work performance or
34 which creates an intimidating, offensive, disruptive, or hostile work environment. Inappropriate
35 conduct may be the basis for discipline.

36
37 **ARTICLE 6**
38 **UNION REPRESENTATION**
39

40 **Section 6.1 Staff Representatives.** The Employer agrees to admit one (1) Union staff
41 representatives to the Employer's facilities during the Employer's normal office business hours,
42 Monday through Friday. The staff representative may be admitted to the Employer's facilities and
43 sites for the purpose of processing grievances or attending meetings as permitted herein.
44 Normally, advance notice of such staff representative visits will be provided to the Employer.

45
46 **Section 6.2 Steward.** The Employer shall recognize one (1) Division Chairman and one (1)
47 employee to act as Union steward for the purpose of processing grievances in accordance with the

grievance procedure. The City will excuse two (2) Union Representatives with pay not to exceed 40 hours per employee per year in order to conduct Union Business. Union Business shall consist of; (1) Regional Conference, (2) Regional Training, (3) National Conference and (4) Power for America. The city will not reimburse for travel, lodging and meals.

Section 6.3 List of Steward and Officers. Within thirty (30) calendar days following the execution of this Agreement and annually in January, the Union shall provide to the Employer an official roster of the local's officers, steward, and staff representatives and shall include the following:

- A. Name
- B. Address
- C. Home telephone number
- D. Union office held.

Thereafter, any changes to the official roster shall be forwarded to the Employer within two (2) weeks of the date of the change.

No employee shall be recognized by the Employer as a Union representative until the Union has presented the Employer with written certification of that person's selection.

Section 6.4 Non-Work Activities. The investigation and writing of grievances shall be done on non-work time, unless prior approval is granted by Public Works Superintendent. In the event a Division Chairman or Union Steward's presence is requested or required in a meeting involving discipline, or a situation requires investigation during normal work hours the time shall be kept to a minimum; the Public Works Superintendent shall have the right to order employee(s) back to work. If such meeting is scheduled during regular duty hours, the employee shall not suffer any loss of pay while attending the hearing.

In the event a grievance hearing, including arbitration, is scheduled during the grievant's regular duty hours, the grievant shall not suffer any loss of pay while attending the hearing.

Section 6.5 Rules for Union Representation. Rules governing the activity of Union representatives are as follows:

- A. The Union agrees that no official of the Union, employee or non-employee, shall interfere, interrupt, or disrupt the normal work duties of other employees. The Union further agrees not to conduct Union business during working hours except to the extent specifically authorized herein.
- B. The Union shall not conduct Union activities in any work areas without securing permission from the Employer.
- C. The Union employee official shall cease Union activities immediately upon the request of the supervisor of the area or City Manager or Designee where the Union activity is being conducted or upon the request of the employee's immediate supervisor.

ARTICLE 7

PURPOSE FOR NEGOTIATIONS AND CONTRACT CONSTRUCTION

Section 7.1 Purpose for Negotiations. The Employer and the Union agree that negotiations for this Agreement had, as its purpose, the following:

- A. To achieve and maintain a satisfactory and stabilized Employer-Employee relationship and improve work performance by Employees;
- B. To provide for the peaceful and equitable adjustment of differences which may arise;
- C. To attract and retain qualified employees;
- D. To insure the right of every employee to fair and impartial treatment; and
- E. To establish responsibilities of employees and assurances of performances by employees.

Section 7.2 Waiver, Conformity to Law, and Amendment. The parties intend this Agreement to supersede and replace any state and local laws on the subjects referenced, addressed, or covered by this Agreement and is also a waiver of the topics and issues addressed or included in this Agreement. If, by operation of law, or by a court of competent jurisdiction, it is found that any provision shall be of no further force and effect, the remainder of the Agreement shall remain in full force and effect for the Agreement term.

The parties agree that should any provision of this Agreement be found to be invalid, they will attempt upon written request from either party, to discuss replacement language on the same matter within thirty (30) days.

Amendments and modifications of this Agreement may only be made by mutual written agreement of the parties to this Agreement, subject to ratification by the Union and Employer.

Section 7.3 Application of Civil Service Law. Except as expressly otherwise provided in this Agreement or specifically excepted from the scope of collective bargaining by the provisions of Revised Code Chapter 4117, civil service laws contained in Revised Code Chapter 124, sections 124.01 through 124.56 and any other matter referenced in this Agreement shall not apply to employees in the bargaining unit. It is expressly understood that the Civil Service Commission shall have no authority or jurisdiction as it relates to any issue or matter addressed in this Agreement or to employees in the bargaining unit.

Section 7.4 Grammar/Gender. Words, whether in the masculine, feminine or neutral genders, shall be construed to include all of those genders. By the use of either the masculine or feminine genders it is understood that the use is for convenience purposes only and not to be interpreted to be discriminatory by reason of sex.

ARTICLE 8

EMPLOYEE RIGHTS

Section 8.1 Union representative. An employee has the right to the presence and advice of a Union representative at all investigatory or disciplinary meetings.

Section 8.2 Investigation/Discipline. All investigatory or disciplinary meetings shall occur

1 during normal working hours to ensure there is union representation available.
2

3 **Section 8.3 Personnel File.** An employee may request an opportunity to review their own
4 personnel file, add memoranda to the file clarifying any documents contained in the file and may
5 have a Union representative present when reviewing their own file. A request by the employee or
6 their union representative for copies of items included in his or her file shall be honored. All items
7 in the employee's file with regards to complaints and disciplinary action will be clearly marked
8 with respect to the final disposition. Records of supervisory intervention, warning, written
9 reprimand, suspension or reduction, provided there is no intervening discipline shall cease to have
10 force and effect thirty-six (36) months from the date of issuance.
11

12 **Section 8.4 Copies of Agreement.** Copies of this agreement will be made available.
13
14
15

16 **ARTICLE 9**
17 **MANAGEMENT RIGHTS**
18

19 **Section 9.1 General.** Except to the extent modified by the provisions of this Agreement, the
20 Employer reserves and retains solely and exclusively all of his legal rights to manage its operations.
21 The rights of the Employer shall include, but not be limited to his rights to establish, change or
22 abolish policies, practices, rules or procedures for the conduct of operations, its employees and its
23 service to the citizens of the City, consistent with the provisions of this Agreement.
24

25 **Section 9.2 Management Rights.** The Employer's exclusive rights shall include, but shall not
26 be limited to the following except as expressly limited by the terms and conditions set forth in this
27 Agreement:

- 28 A. Determine matters of inherent managerial policy which include, but are not limited
29 to, areas of discretion or policies such as the functions and programs of the office, standards
30 of services, its overall budget, utilization of technology, and organizational structure.
31 B. To manage and direct its employees, including the right to select, hire, promote,
32 transfer, assign, supervise, evaluate, retain, layoff and recall; and determine the number
33 and types of employees required.
34 C. Maintain and improve the efficiency and effectiveness of governmental operations;
35 D. Determine the overall methods, process, means or personnel by which operations
36 are to be conducted including the right to manage and determine the location, type, and
37 number of physical facilities, equipment, programs, and the work to be performed;
38 E. Suspend, discipline, demote or discharge for cause, or transfer, assign, schedule, or
39 retain employees and to lay off employees from duty due to the lack of work or lack of
40 funds, reorganization, or abolishment of positions;
41 F. To determine the size, composition and adequacy of the work force, to establish,
42 alter and change work schedules, to establish, modify, consolidate and to determine staffing
43 patterns, including, but not limited to the assignment of employees, qualifications required
44 and areas worked;
45 G. Determine the overall mission of the City as a unit of government;
46 H. Effectively manage the work force;
47 I. Take actions to carry out the mission of the City as a governmental unit;

- K. The right to establish work schedules and assignments and to determine the necessity for overtime and the amount and assignments required thereof;
- L. The right to maintain the security of records and other pertinent information;
- M. The right to determine and implement necessary actions in emergency situations;
- N. The right to determine when a job vacancy exists, the duties and qualifications to be included in all job classifications, and the standards of quality and performance to be maintained; and
- O. The right to determine the Employer's goals, objectives, programs and services, and to utilize personnel in a manner designated to effectively meet these purposes.

Section 9.3 Reserved Rights. The Union recognizes and accepts that all rights and responsibilities of the Employer not specifically modified by this Agreement shall remain the rights and responsibilities of the Employer.

The Employer retains and reserves all rights, power, authority, duty and responsibility confirmed or invested in it by the laws and constitution of the State of Ohio and/or the United States of America. The exercise of any such right, power, authority, duty or responsibility by the Employer and the adoption of such rules, regulations, and policies as it may deem necessary, and as they apply to employees represented by the Union, shall be limited only by the terms of this Agreement.

Section 9.4 Residual Rights. In addition, the Union agrees that all of the functions, rights, powers, responsibilities and authority of the Employer with regard to the operation of its work and business and the direction of its work force which the Employer has not specifically abridged, deleted, granted, or modified by the express and specific written provisions of this Agreement are, and shall remain, exclusively those of the Employer.

No prior agreement, understanding or past practice shall be binding upon the parties hereto unless such agreement is made and executed in writing between the parties hereto and same has been ratified by the Union. No alteration, variation, waiver or modification of any of the terms or conditions or covenants contained in this Agreement shall be made by any employee or group of employees with the City and in no case shall it be binding upon the parties hereto unless such agreement is made and executed in writing between the parties hereto and same has been agreed to by the Union.

Section 9.5 Retention of Benefits All of the Employer's ordinances, resolutions and practices, etc., shall remain in full force and effect during the life of this Agreement, except to the extent that such ordinances, resolutions and practices, etc., conflict with the terms of this Agreement, in which case the terms of this Agreement shall be deemed as superseding such ordinances, resolutions and practices.

ARTICLE 10

WORK RULES AND REGULATIONS

Section 10.1 Rules by Employer. The Union recognizes that the Employer, in order to carry out its statutory mandates and goals, has the right to promulgate work rules, regulations, policies

and procedures, consistent with the Employer's statutory authority to regulate the conduct of employees, and the conduct of the Employer's services and programs.

While all parties agree and understand that not all standards for conduct are or should be reduced to writing, the Employer agrees that existing work rules shall be made available to all members.

Section 10.2 Notice to Union. When the Employer issues new rules or policies The Union shall be given a seven (7) calendar day notice. If the Union request the City will meet to discuss the work rule or policy.

Section 10.3 Employee Responsibility. This Article shall not be interpreted in any manner so as to relieve an employee of his responsibilities to follow normal and customary rules of good and safe conduct and performance regardless of whether or not there exist rules, policies, and procedures.

ARTICLE 11 WORKING CONDITIONS

Section 11.1 Bulletin Boards. Reasonable space shall be provided on City bulletin boards in the Public Works Department, for the use of the Union in posting bulletins and notices for the attention of its members.

Section 11.2 Personal Protective Equipment (PPE). The City and the Union agree to cooperate in placing in effect and maintaining safety rules and practices that will eliminate hazard and ensure safe working conditions at all times. The employer shall provide required personal protective equipment (PPE), which includes hard hats, safety glasses, hearing protection, gloves and safety vests.

ARTICLE 12 CORRECTIVE ACTION

Section 1. Basis for Discipline Disciplinary action taken by the Employer that may result in demotion, suspension, and/or discharge shall only be for just cause. Except in cases of gross misconduct the concept of progressive discipline will be adhered to.

Section 2. Notice to Employee A non-probationary Employee who is, demoted, suspended, or discharged shall be given written notice regarding the reason or reasons for the action. The Employee shall be informed of the right to confer with a representative of the UWOA.

Section 3. Appeal of Discipline Any Employee who is, demoted, suspended or discharged may file an appeal of such action, in writing, through the grievance procedure contained herein within seven (7) calendar days following the receipt of notice of any such order of demotion, suspension, or discharge.

Section 4. Basis for Discipline an Employee shall be disciplined only for violation of established standards of conduct or rules and regulations of the Employer. Such rules shall be equitably applied to all Employees.

Section 5. Time to Initiate Discipline In areas of discipline that are non-criminal in nature, the Employer shall take disciplinary action within a period of no later than thirty (60) working

1 days from when the Employer becomes cognizant of the alleged infraction. (Note to this sentence:
2 If an infraction is initiated as criminal in nature and then is found to be non-criminal, the 60-day
3 disciplinary period commences with the time the infraction is deemed non-criminal.) If such
4 disciplinary action is not taken against the Employee within such period of time, the disciplinary
5 action is deemed withdrawn. In areas of discipline that are criminal in nature, the Employer may
6 take disciplinary action within a period of no later than thirty (60) working days from when all
7 court proceedings are concluded, however, this thirty (60) working days will not extend past any
8 codified statutes of limitations. All times within this section may be extended by mutual written
9 agreement. Holidays, employee time off and weekends do not count towards the 60 working days.

10 **Section 6. Records of Employee** Conduct Records of supervisory intervention, warning,
11 written reprimand, suspension, or reduction shall cease to have force and effect thirty-six (36)
12 months from the date of issuance.

13 **Section 7. Pre-Disciplinary Process**

14 (a) Criminal Charges When an employee is charged with a misdemeanor or
15 felony, the Employer shall schedule a pre – disciplinary hearing within 10 days. An employee
16 may be placed on administrative leave with pay at any time during the process, if the appointing
17 authority determines the employee's continued presence on the job represents a potential danger
18 to persons or property, or would interfere with the employer's operation

19 (b) Garrity Rights, Administrative Leave Pending Criminal Matter Unless the
20 employee is granted their Garrity Rights, they shall be placed on administrative leave until the
21 criminal matter has been adjudicated. The first 30 days shall be with pay. The Employer may
22 place them on unpaid administrative leave, after the 30 days. The pre – disciplinary hearing would
23 be held in abeyance until the matter has been resolved in the courts. The Employee may use any
24 accrued time, other than sick leave, while on administrative leave without pay.

25 (c) Employee on Administrative Leave An employee may be placed on
26 administrative leave with pay or suspended for cause if they are granted their Garrity Rights and
27 the reason for the suspension is based on a misdemeanor, (related to Uniform Standards of Conduct
28 #1), or a felony. If after 30 days, the complaint has not been resolved in Court, the Employer may
29 place on administrative leave without pay or suspend the employee, until the matter has been
30 adjudicated. If such suspension is imposed, its outcome is subject to the grievance and arbitration
31 procedure. The Employee may use any accrued time, other than sick leave, while on administrative
32 leave without pay.

33 (d) Administrative Charges During or Following Criminal Proceedings Once the
34 criminal case has been fully adjudicated, the employer shall have 10 calendar days to re-open the
35 pre-disciplinary hearing. Additionally, the Employer may pursue administrative
36 proceedings/discipline during the pendency of the criminal proceedings. If the employee is found
37 to be innocent of the criminal and administrative charges, they shall be made whole for all time
38 lost.

39
40 **Section 8. Discipline Policy** All employees will follow the Discipline Policy set forth by the
41 city.
42
43
44
45

ARTICLE 13
GRIEVANCE PROCEDURE

Section 13.1 Definitions. The term “grievance” shall mean an allegation by a bargaining unit employee(s) or the Union that there has been a breach, misinterpretation, or improper application of the specific terms of this Agreement.

This grievance procedure may not be used to effect changes in the provisions of this Agreement.

Section 13.2 Grievant, Group Grievances. A grievance may be brought by any bargaining unit employee or the Union. Grievances that affect more than one (1) employee may be filed as a group grievance. Where a group of bargaining unit employees or the Union desire to file a grievance involving a situation affecting each employee, one (1) employee selected by the Union will process the grievance.

Section 13.3 Grievance Form and Required Information. The written grievance shall contain the following information:

- a. aggrieved employee’s name(s);
- b. aggrieved employee’s classification;
- c. aggrieved employee’s supervisor;
- d. date and time of incident giving rise to grievance;
- e. date grievance was filed in writing;
- f. articles/sections of Agreement allegedly violated;
- g. brief statement of the facts involved; and
- h. requested remedy to resolve grievance.

Section 13.4 Presentation of Grievances, Advancement. All grievances must be processed at the proper step in the progression in order to be considered at the subsequent step. Any grievance not presented at step one of the grievance procedure within the prescribed time limits shall be considered untimely. Any grievance that is not timely appealed to the next step of the procedure will be deemed to have been settled on the basis of management’s answer at the last completed step. The Union may withdraw a grievance at any point of the procedure by submitting, in writing, a statement to the Employer to that effect. The time limits for filing and appealing grievances is mandatory unless a mutual extension is agreed to in writing.

Section 13.5 Grievance Procedure Steps. Each grievance shall be processed in the following manner:

An employee having a grievance will first bring the grievance within seven (7) days of the date of the incident giving rise to the grievance.

Step 1 – Public Works Superintendent. The employee shall reduce the grievance to writing, and present the grievance to the Public Works Superintendent. The Public Works Superintendent or his designee shall have seven (7) days in which to schedule a meeting with the aggrieved employee and the Union Steward or Union Representative. The Public Works Superintendent or his designee shall investigate the matter and shall respond to the grievant and Union President with a written answer within seven (7) days following the meeting.

1 **Step 2 – City Manager.** If the employee is not satisfied with the resolution at step 1 the employee
2 may within seven (7) days following receipt of the step 1 decision present the grievance to the City
3 Manager. The City Manager or his designee shall have seven (7) days in which to schedule a
4 meeting with the aggrieved employee and the Union Steward or Union Representative. The City
5 Manager or his designee shall investigate the matter and shall respond to the grievant and Union
6 President with a written answer within seven (7) days following the meeting.

7
8 **Step 3 – Arbitration.** If the grievance is not satisfactorily settled in Step 1, the Union may submit
9 the grievance to arbitration with written notice to the Employer within seven (7) days of the receipt
10 of the written answer at Step 2. If no answer is provided at Step 1 then the submission for
11 arbitration must be filed with the Employer within 14 days following the date the Union filed the
12 grievance at step 1.

13
14 Either party may request to the Federal Mediation and Conciliation Service (FMCS) for a list of
15 seven (7) arbitrators from within Ohio or adjacent states after notice has been given as provided
16 above. In the event the Employer is not notified, or the grievance is not referred to arbitration
17 within the time limits prescribed, the grievance shall be considered resolved based upon the Step
18 2 reply.

19
20 **Selection of Arbitrator.** Upon receipt of the list of seven (7) arbitrators, the parties shall meet or
21 converse by telephone to select an arbitrator within fourteen (14) days from the date the list is
22 received. Once the arbitrator has been selected and notice of the selection has been forwarded to
23 the FMCS, the parties will have sixty (60) calendar days following to contact the arbitrator and
24 schedule the hearing. The parties may mutually select an arbitrator.

25
26 **Striking from Arbitrator List.** The parties shall use the alternate strike method from the list of
27 seven (7) arbitrators submitted to the parties by FMCS. The Union shall be the first to strike a
28 name from the list, and then the Employer or his designee shall strike a name and alternate in this
29 manner until one (1) name remains on the list. The remaining name shall be designated as the
30 arbitrator to hear the dispute in question. Either party shall have the option to completely reject
31 one (1) list of names provided by the FMCS and request another list.

32
33 **Arbitrator decision timely.** The arbitrator shall hold the arbitration promptly and issue his
34 decision within a reasonable time thereafter.

35
36 **Parameters of Authority of Arbitrator.** The arbitrator shall limit his decision strictly to the
37 breach, misinterpretation, or improper application of the specific terms of this Agreement.
38 The arbitrator shall not have the authority to add to, subtract from, modify, change, or alter any
39 provision of this Agreement, nor add to, subtract from, or modify the language therein arriving at
40 his determination on any issue presented that is proper within the limitations expressed herein.

41
42 The arbitrator shall expressly confine himself to the precise issues submitted for arbitration, and
43 shall have no authority to determine any other issues not so submitted to him or to submit
44 observations or declarations of opinion which are not directly essential in reaching a decision on
45 the issue in question.

46 The arbitrator shall not authority to recommend any right or relief on an alleged grievance
47 occurring only during the contract period in which such right originated, and is without authority
48 to make any award based on rights arising under the period of any previous or subsequent

1 Agreement. The arbitrator shall not establish any new or different wage rates not negotiated as
2 part of this Agreement. In the event of a monetary award, the arbitrator shall limit any retroactive
3 settlement to the date the grievance was presented to the Employer in Step 1 of the grievance
4 procedure.

5
6 **Cost of Arbitrator.** All costs directly related to the services of the arbitrator shall be shared
7 equally amongst both parties.

8
9 **Witnesses.** Expense of any non-employee witnesses shall be borne, if any, by the party calling
10 the witness. The fees of the court reporter shall be paid by the party asking for one; such fees shall
11 be split equally if both parties desire a court reporter's recording, or request a copy of any
12 transcript.

13
14 **Section 13.6 Grievant Representing Himself, Grievance Meetings, Witnesses at Hearing.**
15 When an employee covered by this Agreement represents himself in a grievance, no settlement
16 shall be in conflict with any provisions of this Agreement. It is understood that bargaining unit
17 employees have the right to present grievances and have them adjusted, without the intervention
18 of the Union, as long as the adjustment is not inconsistent with the terms of this Agreement, and
19 as long as the Union has the opportunity to be present at the adjustment. Otherwise, an employee
20 may choose one (1) employee Union Representative to accompany him in grievance meetings.

21
22 **Section 13.7 Representative in Grievance Meeting.** In addition to the employee Union
23 Representative in attendance at grievance meetings, the grievant may have one (1) non-employee
24 Union Representatives present. For purposes of this section, should grievance meetings be held
25 during normal work hours/shift, the applicable employee Union Representative and the grievant
26 shall not suffer any loss of their normal straight time hourly rate of pay.

27
28
29 **ARTICLE 14**
30 **PROBATIONARY PERIODS**

31
32 **Section 14.1 New Hired Employees.** Every newly hired employee will be required to
33 successfully complete a probationary period. The probationary period for new employees shall
34 begin on the first day for which the employee receives compensation from the Employer and shall
35 continue for a period of one year. Newly hired probationary employees may be terminated any
36 time during his probationary period and shall have no appeal over such removal.

37
38 **Section 14.2 Required Licenses.** Licenses or certifications required for positions shall include

- 39
40 1. Class B CDL with tanker and air brake endorsement

41
42 CDL with endorsements must be obtained within 6 months of probationary period

43
44 **Section 14.3 Costs and Expenses**

45
46 The City shall pay the cost of study materials and fee of examination for each required and non-
47 required license. Employees shall be granted time off during normal work hours with pay to take
48 examinations for the required and non-required licenses or required in person training, additionally

city will reimburse additional examination fee upon passing examination for the required and non required licenses. This means that if an employee fails the 1st examination for a required or non-required license, the city bears that examination fee, for any subsequent examinations for required and non-required license the city will only reimburse the examination fee of the successful passing examination.

ARTICLE 15
COMMERCIAL DRIVER'S LICENSE, INSURABILITY

Section 15.1 Loss of CDL. If any employee loses, fails to obtain, or fails to maintain his Commercial Driver's License, he/she may be placed on layoff without bumping rights. An employee must re-obtain his CDL within forty-five (45) days, or 180 days if loss of CDL is due to medical disqualification from the date of layoff in order to retain rights of employment.

Section 15.2 Insurability. Loss of insurability under the City liability policy or significantly increased premium amounts for coverage for an employee will be sufficient basis for discharge.

ARTICLE 16
COMPENSATION

Section 16.1 Progression Steps. The following shall be the progression rate for the position of Laborer

Hourly Rates	2024 - 3%	2025 - 3%	2026 - 4%
After 48 months	\$28.21 per hour (100%)	\$29.06 per hour (100 %)	\$30.22 per hour (100%)
After 36 months	\$26.80 per hour (95%)	\$27.61 per hour	\$28.71 per hour (95%)
After 24 months	\$25.39 per hour (90%)	\$26.15 per hour	\$27.20 per hour (90%)
After 12 months	\$23.98 per hour (85%)	\$24.70 per hour	\$25.69 per hour (85%)
Probationary	\$22.57 per hour (80%)	\$23.25 per hour	\$24.18 per hour (80%)

Class I Water Distribution License 0.75/hr

Class I Wastewater Distribution License 0.75/hr

Class II Wastewater Distribution License 1.00/hr

Backflow Certification 0.50/hr

CDL A 0.50/hr

New Hire with a Class I Water Distribution or Class I Wastewater License will start at After 24 month rate and progress to After 36 month rate after 12 months from date of hire and to the After 48 month rate after 12 months from date of hire.

ARTICLE 17
HOURS OF WORK/OVERTIME

Section 17.1 Normal Hours of Work. This Article is intended to define, subject to change, the normal hours of work per day or per week in effect at the time of execution of this Agreement. Nothing contained herein shall be construed as preventing the Employer from restructuring the normal work day or work week for the purpose of promoting efficiency or improving services; from establishing the work schedules of employees; or establishing part-time positions. This Article is intended to be used as the basis for computing overtime and shall not be construed as a guarantee of work per day or per week.

Notwithstanding the provisions of this Article, in the event an employee is called out or is scheduled to work at a time that abuts their normal starting time and works their scheduled work hours, the employee may, with the approval of the Employer, go home. Alternatively, the Employer may require the employee to remain on the job or the Employer may send the employee home depending on the workload requirements, weather conditions, and/or safety reasons based on adequate sleep and rest period concerns.

Section 17.2 Work Week. The work week for permanent full-time employees shall constitute forty (40) hours per week to be performed 12:00am Sunday to 11:59pm Saturday. The work week shall generally consist of five (5) consecutive scheduled work days commencing every Monday through Friday from 7am through 3:30pm. A work day shall generally be eight (8) hours in a twenty-four-hour period. When modifying the regular work schedule the Employer will provide at least 48 hours notice in advance in the event a blizzard or six or more inches of snow are expected. .

Section 17.3 Lunch Period Each Employee shall be permitted a one-half (1/2) hour unpaid lunch period during a regularly scheduled shift. Lunch periods shall not be taken adjacent to the beginning or ending of an employee's shift.

Section 17.4 Rest Period Each employee shall be permitted a fifteen (15) minute rest period during a regularly scheduled work day, to be taken either in the morning or afternoon. Rest periods shall not be taken adjacent to the beginning of a shift start time, lunch period, or end of a shift end time. Employee shall take rest period on site where task is being performed.

Section 17.5 Overtime Rate. All employees shall be paid at the rate of one and one-half (1 1/2) times their regular hourly rate of pay for all hours actually worked which exceed the regular scheduled hours for that day or forty (40) hours in one (1) work week. Paid days or time off during the work week shall be counted as hours worked toward computing overtime.

Section 17.6 Call Out. All off duty employees called into work shall be eligible for overtime compensation for any hours worked in excess the regular scheduled hours for that work day hours or for any hours worked in excess of forty (40) hours in one week. Carry over work directly following a regularly scheduled shift is not considered a call out. Call outs are categorized as follows:

1) Call Out: call out which are not adjacent to an employees' regularly scheduled shift will be compensated at one and one-half times their regular hourly rate of pay

for hours worked, but in no case less than four hours regular rate of pay.

2) Call Out Adjacent to the Start of Regularly Scheduled Shift: call outs that are adjacent to the start of an employees' regularly scheduled shift will be compensated at a one and one-half times their regular hourly rate for hours worked prior to the start of their regularly scheduled shift.

Section 17.7 Compensatory Time The Employee shall be compensated, at the Employee's election, either at (a) the rate of one and one-half (1 1/2) times the Employee's adjusted regular hourly rate for hours worked or (b) by "compensatory time off" computed at a rate of one and one-half (1 1/2) times the hours worked. The maximum accumulation of "compensatory time off" is 50 hours. Any balance of comp time at the end of the calendar year will be applied to the maximum accumulation for the following year. The Public Works Superintendent or designee may refuse requests for using "compensatory time off" if it results in overtime for another Employee. There is no opportunity to cash out the compensatory time.

ARTICLE 18

CLOTHING ALLOWANCE

Section 18.1 Annual Allowance. Every non-probationary employee shall be provided a boot and clothing allowance of \$750.00 annually paid by check in the month of October for the purchase of appropriate safety toe work boots and appropriate work clothing. The clothing shall include denim pants, short and long-sleeved shirts and florescent clothing. The City shall continue to provide appropriate work gloves, vests and rubber overshoes.

Section 18.2 New Hire Allowance. The City shall expend at least \$750.00 to appropriately outfit a newly hired employee. If the newly hired employee does not fulfill the probationary period, the newly hired employee shall pay the City back the full amount expended to outfit the newly hired employee.

Section 18.3 Probationary Period Employee Prorated Annual Allowance Probationary period employees upon successful completion of their probationary period will receive a prorated amount of the uniform allowance from the first full month following date of hire forward to October. *For example*, an employee hired in April would receive six (6) months credit (1/2 payment) paid upon completion of their probationary period. For clarity purposes, the stated example is depicted in the table below:

<i>Example</i>			
Date	Event	Allowance Amount	Allowance Description
04/2024	Newly Hired Employee	Not less than \$750.00	City expends at least \$750.00 to outfit employee
10/2024	Annual Allowance Provided	N/A	Probationary New Hire not eligible for payment

04/2025	New Hire Successfully completes probationary period	\$375.00	Prorated Credit forward to October Payment (May – Oct = 6 months of prorated Uniform Allowance
10/2025	Annual Allowance Provided	\$750.00	Newly Hired Employee completed probationary period and is eligible for full annual clothing allowance

ARTICLE 19
INSURANCE

Section 19.1 Health Insurance. The City shall provide healthcare coverage to all employees. This coverage is to include medical, prescription, vision and dental coverage.

The Employee shall contribute 13% of total cost of the plan for medical and prescription drug coverage. Employee contributions shall be by payroll deduction using the pretax method and done bi-monthly. The City shall pay the full cost of vision and dental plans.

Section 19.2 Life Insurance. The City shall pay the full premium for all full-time employees for a convertible term life insurance policy in the face value of Thirty-Five Thousand Dollars (\$35,000).

Section 19.3 Healthcare Committee. The City shall permit one employee from the bargaining unit to participate in the City's healthcare committee. The City and the Union recognize that participation in the committee is intended to provide information to the membership about how the plan works and through participation will be involved in determination of coverage levels is an effort to help contain costs, keep the plan viable and provide feedback to the bargaining committee.

Section 19.4 The city shall continue payments into the pension system (OPERS) at the rate set by the Administrators of the system and as required under state law.

ARTICLE 20
VACATIONS

Section 20.1 Prior Service Credit. All provisions of Section 9.44 of the Ohio Revised Code have been considered in bargaining for this Article of the Collective Bargaining Agreement.

Section 20.2 Accumulation and Use of Vacation Leave. Employees shall be entitled to take vacation after completion of ninety (90) calendar days from date employee first receives compensation. Employees shall accumulate vacation days at the following rates: If the employee is in full pay status for at least twenty (20) days during such month.

City of Canfield – Utility Workers Union of America

Years of Service - After	Accumulative Rate
1 month through 3 years	5/6 of a day per month
3 years through 5 years	1 day per month
5 years through 10 years	1 1/4 day per month
10 years through 15 years	1 1/2 days per month
15 years through 20 years	1 3/4 days per month
20 years through 25 years	2 days per month
25 years and more =	2 1/2 days per month

In the event that the City implements a different payroll system, leave amounts will be converted to an equivalent amount, e.g. 10 days = 80 hours.

Each non-probationary Employee shall take at least five (5) days' vacation per year and may accumulate a maximum number of twenty-five (25) days. It is the responsibility of the Employee to plan ahead and "use or lose" the vacation time.

Each non-probationary Employee shall have the option to cash out up to forty (40) hours of accumulated vacation time once per year so long as the employee maintains at least forty (40) hours of vacation time in their vacation leave bank. Employees exercising this cash out must request the cash out by November 1st. The vacation cash out shall not count as taking the minimum required vacation days as outlined above.

Section 20.3 Vacation Reporting Earned vacation shall be calculated and reported to Employees each pay period.

Section 20.4 Vacation Approvals Vacation time shall be taken at a time approved of by the City Manager or designee. Vacation time off should not be scheduled for Independence Day celebration.

Section 20.5 Transfer of Vacation Leave Within City An Employee who has earned vacation time by reason of being employed by the Canfield Police Department shall be able to transfer their vacation time to another City of Canfield department should the Employee elect such a transfer.

Section 20.6 Conversion of Vacation Leave on Death Upon the death of an Employee, or retirement or resignation of an Employee who has put in a minimum of two weeks notice, and has unused vacation time, the Employee or estate of the Employee shall be paid for any accumulated and unused vacation time at the current regular rate, subject to a maximum of twenty-five (25) days.

Section 20.7 Annual Vacation Leave Bid Vacation dates will be bid for annually by Departmental Seniority for Bargaining Unit A and Bargaining Unit B and by Seniority in Rank for Bargaining Unit C. The initial round of bidding will be conducted prior to January 1 of each year and will be limited to a maximum of ten (10) days, five (5) of which must be consecutive. After the initial round is complete, a second round of bidding will be conducted during which the

remainder of available vacation days may be selected without restriction. Remaining vacation days may then be requested. Bargaining Unit Members will only have to bid against other Bargaining Unit Members for vacation dates and will not suffer vacation restrictions because members of another bargaining unit have made similar vacation date requests.

During the first round of bidding, each member of each bargaining unit may only bid on three holidays, provided these holidays are not already taken and provided that these holidays should not include Independence Day celebration times and Labor Day.

Section 20.8 Advance of Vacation Leave An Employee that qualifies for “Family Leave” to care for a spouse, son, daughter or parent with a “serious health condition” may request in writing a one-year advance on vacation time. Said request may be approved by the Manager after reviewing medical certifications. Said advance shall be granted only once per “serious health condition.” Said vacation advance shall not entitle the Employee to payment upon Employee’s termination of service, whether voluntary or involuntary.” (For the purpose of this Agreement, the terms “family leave” and “serious health condition” shall be defined as provided in the Family and Medical Leave Act of 1993).

ARTICLE 21 **HOLIDAYS**

Section 21.1 Holidays. All employees shall receive time off with full pay for the following 13 holidays:

- | | |
|---------------------------|----------------------------------|
| 1. New Year’s Day | 6. Labor Day |
| 2. Martin Luther King Day | 7. Veterans’ Day |
| 3. Presidents’ Day | 8. Thanksgiving Day |
| 4. Memorial Day | 9. Friday after Thanksgiving Day |
| 5. Independence Day | 10. Christmas Day |
| | 11. Good Friday |
| | 12. Christmas Eve |
| | 13. Juneteenth |

Section 21.2 Observance of Holidays. Holidays falling on a Sunday shall be observed on the following Monday. Holidays falling on a Saturday shall be observed on the preceding Friday.

Section 21.3 Pay for Holidays. Full-time bargaining unit employees shall receive eight (8) hours of holiday pay whether or not they work on a holiday.

Section 21.4 Work on Holiday. Employees who work on a holiday shall be compensated at one and one-half (1 1/2) times their normal hourly rate of pay for all hours worked on the holiday, in addition to receiving their automatic holiday pay.

Section 21.5 Holidays During Leave. If a holiday occurs during a period of sick or vacation leave of an employee, the employee shall draw normal pay and shall not be charged for sick leave or vacation for the holiday.

Section 21.6 Holidays on Unpaid Leave. An employee on unpaid leave of absence shall not receive payment for a holiday.

ARTICLE 22
PAID LEAVE

Section 22.1. Sick Leave.

Section 1. Sick Leave Uses Sick leave shall be defined as an absence with pay necessitated by: 1) illness or injury to the Employee or "immediate family" as defined in Section 7; 2) exposure by the Employee to contagious disease communicable to other Employees; 3) serious illness, injury, childbirth by the Employee or Employee's spouse, or death in the Employee's immediate family; or 4) medical, dental, or optical examination or treatment which prevents the Employee from performing assigned duties.

Section 2. Sick Leave Earned All full-time Employees shall earn sick leave at the rate of five (5) hours per pay [ten (10) hours per month or one and one-quarter (1 1/4) days per month] and may accumulate such sick leave to a maximum of 2000 hours (250 work days); provided, however, that an Employee shall not earn sick leave for any month unless the Employee is in full pay status for at least twenty (20) work days during such monthly period.

Section 3. Notification for Use of Sick Leave an Employee who is to be absent on sick leave shall notify the supervisor of such absence and the reason there for at least one (1) hour before the start of their work shift each day the Employee is to be absent. An Employee who becomes ill or injured on duty shall be entitled to sick leave and shall notify their supervisor prior to leaving. Such notice and reason may be required to be confirmed in writing by the Employee upon return to work.

Section 4. Increments for Use Sick leave may be used in segments of not less than one (1) hour.

Section 5. Satisfactory Excuse for Use of Sick Leave Before an absence may be charged against accumulated sick leave, the Chief of Police or the Chief's designee may require the Employee to furnish a satisfactory medical excuse for absences of three (3) days or greater indicating that the absence was caused by illness or any causes listed in this Article.

Section 6. Abuse or Misuse of Sick Leave, Physical/Medical Exams Any abuse or misuse of sick leave shall be just and sufficient cause for discipline as may be determined by the Chief of Police or the Chief's designee. In the event the Employer determines that there is probable cause to believe that an Employee may be physically or mentally unfit to perform their job, the Employer may require a physical or mental examination, at its expense to determine fitness for the job. The Employee may submit similar medical evidence and if such evidence is contradictory the Employer and Employee's physicians shall select a third physician whose opinion of fitness shall be binding upon the parties. All medical costs shall be at the Employer's expense.

Section 7. Immediate Family Defined When the use of sick leave is due to illness or injury in the immediate family, "immediate family" shall be defined to only include the Employee's spouse, children or parents.

Section 8. Transfer of Sick Leave An Employee who transfers from this Police department to another department of the Employer shall be allowed to transfer their accumulated sick leave to the new department. Likewise, an employee who transfers into this department with accumulated sick leave shall use the transferred in sick leave time first, prior to using sick leave time earned with the City of Canfield.

Section 9. Conversion at Retirement or Death Upon the death, of an Employee who has at least five (5) years of continuous full-time service to the City of Canfield at the time of death, or upon the retirement of a full time Employee who has at least ten (10) years of continuous full-time service with the City of Canfield at the time of retirement; such Employee or their estate shall be entitled to receive a cash payment equal to their daily rate of pay at the time of death or retirement, multiplied by twenty-five percent (25%) of the total number of accumulated but unused sick days earned by the Employee, as certified by the Finance Director. Notwithstanding the above, the number of days shall not exceed sixty (60). Any conversion shall zero out the balance an employee's sick leave bank.

Section 10. Advance of Sick Leave an Employee that qualifies for "Family Leave" to care for a spouse, son, daughter or parent with a "serious health condition" may request in writing a one-year advance on sick leave. Said advance shall be granted only once per "serious health condition." Said request may be approved by the Manager after reviewing medical certifications. Said sick leave advance shall not entitle the Employee to payment upon Employee's termination of service, whether voluntary or involuntary.

Section 11. Sick Time for Cosmetic Surgery Subject to Vacation Bidding If any absence will be the result of any cosmetic medical procedure that qualifies as sick leave, then the scheduled sick leave time off will be bid against vacation time off, after the second round of bidding is conducted in the preceding December, and will be requested, approved, or denied under the same restrictions imposed on vacation time.

Section 22.2 Sick Leave Bonus. A sick day bonus of six (6) hours of pay per quarter (defined in table below) will be paid on May 30th for the first half and November 30th for the second half of each year to those full-time employees who have taken no sick days in the respective quarter. Each quarter will be evaluated independently for use of sick time. For example, if an employee uses sick leave in the first quarter and no sick leave in the second quarter, they will receive a bonus of six (6) hours of pay on May 30th. Payment will be made by separate check.

Quarter	Begin Date	End Date
1	November 16	February 15
2	February 16	May 15
3	May 16	August 15
4	August 16	November 15

Section 22.3 Personal Days. Each full time City employee shall be granted two (2) Personal Days per calendar year. Personal days must be scheduled with advance approval of the City Manager or his Designee. Personal Days must be taken (or lost) by May 30th of the succeeding year.

Section 22.4 Funeral Leave. A full time employee shall be granted time off with pay (not to be deducted from the employee's sick leave) for the purposes of attending the funeral of a member of the employee's immediate family. Immediate family for funeral leave shall be defined to only include the employee's mother, father, spouse, former spouse, child, brother, sister, father-in-law, mother-in-law, grandparents and grandchildren. The employee may request up to a maximum of four (4) work days for each death in the immediate family.

1
2 An employee shall be granted time off with pay (not to be deducted from the employee's sick
3 leave) one (1) day to attend the funeral of an employee's aunt, uncle, niece, nephew, or other
4 relative living in your household under your care.
5

6 **Section 22.5 Jury Duty** Any Employee who is called for jury duty, either, Federal, County or
7 Municipal, shall be paid his or her regular salary.
8

9 **Section 22.6 Court Appearances.** Any employee who is required to appear in court at the request
10 of the Employer or on behalf of the employer shall be compensated at their regular rate of pay.
11

12 **Section 22.7.** An employee that is required to appear in court at the request of the Employer or on
13 behalf of the Employer outsider of her/his regularly scheduled work day or on the scheduled day
14 off will be compensated at one and one-half (1 1/2) times their hourly rate.
15

16 **Section 22.8. Military Leave.** The city will comply with all Federal and State Law concerning
17 the granting of unpaid leave to employees so that they can meet their military obligations.
18

19 **Section 22.9. Injury Leave.**
20

21 **Section 1. Duty Injury Leave** When an Employee is injured in the line of duty while actually
22 working for the Employer, the Employee shall be eligible for leave with compensation not to exceed
23 ninety (90) calendar days, provided the Employee files for Worker's Compensation and signs a
24 waiver assigning to the Employer those sums of money (temporary total benefits) the Employee
25 would ordinarily receive as their weekly compensation as determined by law for those number of
26 weeks the Employee receives benefits under this Article. An Employee who is injured in the line
27 of duty shall be permitted to leave work immediately to receive medical treatment, and shall notify
28 their supervisor prior to leaving, and shall not suffer loss of that shift's pay as a result.

29 **Section 2. Extension of Injury Leave** If at the end of this ninety (90) calendar day period, the
30 Employee is still disabled, the paid leave may, at the Employer's sole discretion, be extended for
31 an additional period(s).

32 **Section 3. Physical Exams** The Employer shall have the right to require the Employee to have
33 a physical exam by a physician appointed and paid by the Employer resulting in the physician's
34 certification that the Employee is unable to work due to the injury as a condition precedent to the
35 Employee receiving any benefits under this Article. The designated physician's opinion shall
36 govern whether the Employee is actually disabled or not, and whether the Employer will extend
37 the period of leave. The Employer shall have the right to obtain periodic reports from the physician.

38 **Section 4. Personal Items Destroyed in While Working.** Watches, up to a maximum of
39 \$100.00 and glasses shall be repaired or replaced by the Employer when damaged or destroyed in
40 the line of duty. Dentures damaged or destroyed in the line of duty shall be repaired or replaced
41 by the Employer. However, the Employee must file a claim with the Worker's Compensation
42 Bureau and any payment received from Worker's Compensation shall be signed over to the
43 Employer.
44

45 **Section 22.10. Leave of Absence.**

46 **Section 1. Leave of Absence** At the Employee's request, the Employer may authorize leave
47 of absence, without pay, for a period not to exceed three (3) months, provided fourteen (14) days
48 notice is submitted.

Section 2. Administrative Leave of Absence The Employer may place an Employee on paid "Administrative Leave" for up to twenty (20) working days for any stated purpose. Extension of paid "Administrative Leave" may be granted by the Employer.

Section 22.11. FMLA.

Section 1. Eligibility for FMLA An Employee, who has been employed by the City of Canfield for at least twelve (12) months and has worked 1250 hours during the twelve-month period preceding the request for family leave, is an "eligible Employee" for family leave.

Section 2. Conditions for Use of FMLA Family leave is Twelve (12) weeks is unpaid and shall be granted to an "eligible Employee"

- A. Because of the birth of a son or daughter of the Employee and in order to care for such son or daughter.
- B. Because of the placement of a son or daughter with the Employee for adoption or foster care.
- C. Because of a serious health condition of the Employee that makes the Employee unable to perform the functions of the job.
- D. Because of the need to care for the Employee's spouse, son, daughter or parent with a "serious health condition."

Section 3. FMLA Leave Available An "eligible Employee" shall be granted, when requested, a total of twelve (12) weeks of family leave within the first twelve (12) months after a baby's birth or placement.

Section 4. Parental FMLA Family leave may be taken by either parent.

Section 5. Use of FMLA Leave for the birth or placement of a child must be taken in one block of time, unless approved by the Employer. Leave for the "serious health condition" of the employee, employee's spouse, son, daughter or parent may be intermittent.

Section 6. Concurrent Use of Employee Accumulated Paid Leaves and FMLA During family leave, the eligible Employee shall first use all accumulated vacation, compensatory time and sick leave. However, the Employee may request to reserve some portion of his or her vacation, compensatory time and sick leave, not exceeding a total of fifteen (15) days. Then, the Employee shall take the balance of family leave as unpaid leave.

Section 7. Requests for FMLA An Employee is required to request leave in writing thirty (30) days prior to commencement, if possible. The Employer may request medical certification regarding the "serious health condition" and the probable duration of care.

Section 8. Maximum Parental Leave If both parents are employed by the same Employer, the total amount of leave provided shall not exceed twelve (12) weeks (60 working days).

Section 9. Health Insurance During FMLA During the unpaid leave, all health care and life insurance benefits will be paid by the Employer.

Section 10. Failure to Return from FMLA If an Employee elects not to return to work after the expiration of the family leave, the Employer may recover from the Employee the cost of medical premiums paid during the unpaid portion of the leave.

Section 22.12. Light Duty.

Section 1. Employer Determined Availability The availability of light duty assignment will be at the sole and exclusive discretion of the Employer.

Section 2. Requests for Light Duty The Employee may request a light duty assignment, and, such request must be in writing to the Employer. Alternatively, the Employer may require an employee

to report for light duty subject to the conditions established in this Article. The Employer may then, at its discretion, create by memorandum a modified job description detailing specific light duty tasks which take into consideration the particular nature of the Employee's illness or injury. The Employee shall provide a medical report from a treating physician stating the illness or injury which inhibits the Employee from performing normal duties, but would permit the Employee to perform the light duty tasks defined in the modified job description. The Employer may, at its discretion, require that the Employee be examined by another physician, designated and paid for by the Employer, in order to confirm the Employee physician's opinion.

Section 3. Medical Reports If light duty is granted, the Employer may require that the Employee provide a medical report from the Employee's physician every two weeks in order to reaffirm the continued need for, and ability to perform, the designated light duty assignments. Before an Employee on light duty is returned to regular duty status, such Employee shall provide a medical report from their treating physician stating that the Employee is medically capable of performing the Employee's normal duties as defined by the Employee's regular job description.

Section 4. Light Duty Exempt From Overtime Rotation Employees while on light duty assignment are exempt from the overtime rotational list as contained in Article 17, Section 6 of the Agreement.

Section 5. Limits on Time on Light Duty Light duty assignment may not exceed 30 work days per Employee within any consecutive twelve month period.

Section 6. Hours of Work for Light Duty The Employer shall determine the hours of work for light duty assignments, and, will make effort to ensure, the Employee be assigned to the shift that the Employee would have normally worked.

Section 7. Duties While on Light Duty While performing light duty work, the Employee shall not perform any duties other than those specifically assigned by the Employer as contained in the memorandum of modified job description. The Employee is expected to perform and complete the assigned tasks. If the Employee fails to perform the assigned tasks and the Employer has taken reasonable measures to counsel the Employee on such performance deficiencies, the Employee may be denied further light duty status at the exclusive discretion of the Employer, at which time such Employee will be immediately returned to sick leave status.

Section 8. Waiver of Worker's Comp Light duty assignment shall not be granted unless the Employee signs a Waiver and Release which would effectively hold the Employer harmless for any Workers Compensation claims in the event that the particular existing illness or injury which gave rise to the Employee's then current disability would be aggravated while on light duty assignment.

ARTICLE 23 **LABOR/MANAGEMENT MEETINGS**

Section 23.1 Committee. In the interest of effective communications, either party may at any time request a Labor/Management meeting. Such request shall be made in writing and be presented to the other party. The written request shall include an agenda of items the party wishes to discuss and the names of those representatives who will be attending. A Labor/Management meeting shall be scheduled within ten (10) days of the date the request is received, but no more frequently than quarterly, unless both parties agree to meet more frequently.

Section 23.2 Scope of Topics. The purpose of such meeting shall be limited to:

A. Discuss the administration of this Agreement;

- B. Notify the Union of changes made by the Employer which affect bargaining unit members;
- C. Disseminate general information of interest to the parties;
- D. Discuss ways to increase productivity and improve efficiency;
- E. To discuss health and safety-related matters.

Section 23.3 Attendance. Employee representatives in attendance at these meeting(s) shall suffer no loss of wages if said meeting is held during their normal working hours. It is understood there shall be no more than two (2) Union representatives in attendance and no more than two (2) Employer representatives in attendance at these meeting(s).

ARTICLE 24

MEDICAL EXAMINATIONS/DISABILITY SEPARATION

Section 24.1 Examinations. Examinations of employees to determine their ability to perform the material and substantial duties and essential functions of their position and assignment may be required of employees when ordered by the Employer. Examinations may be either periodic or as the Employer requires.

If, at any time, the Employer has a reasonable basis for believing that an employee is no longer mentally or physically capable of performing the material and substantial duties and/or the essential functions of the employee's position, or that the employee poses a threat to the employee or others, the Employer may require the employee to submit to a medical, psychiatric, or psychological fitness for duty examination. Such examination shall be conducted by a licensed health care professional or psychologist selected by the Employer and the Employer shall bear the cost.

At the time of disability separation, the employee will, pursuant to the terms of this Agreement, be paid their accumulated, unused balance of vacation leave.

Section 24.2 Disability Separation and Appeal. Notwithstanding the provisions of this Article or any other provisions of this Agreement, an employee may be disability separated at the time it is determined the employee is unable to perform the material and substantial duties and/or the essential functions of their position.

An involuntary disability separation may be appealed beginning at step 1 of the grievance procedure. The standard for an arbitrator is inability to perform the essential functions of the position, not just cause. Disability separation is not considered disciplinary.

ARTICLE 25

LAYOFFS

Section 25.1 Layoffs. In the event of a layoff situation, members of the bargaining units will be laid off in accordance with their departmental seniority (last hired, first laid off)

A member of a bargaining unit who is laid off shall be subject to recall from layoff for a period of three (3) years. A recall from layoff will be based upon department seniority (last laid off,

first recalled).

Before any full-time employee may be laid off, all part-time Employees will be first laid off.

ARTICLE 26

WAIVER IN CASE OF EMERGENCY

Section 26.1 Emergency. In case of any emergency declared by the President of the United States, the Governor of the State of Ohio, the County Commissioners, the Sheriff, or the Federal or State Legislature, such as acts of God, the following conditions of this Agreement may automatically be suspended.

- A. Time limits for Management or the Union's replies on grievances; and
- B. All work rules, agreement and/or practices relating to the assignment of all employees.

The City will make reasonable efforts to notify the Union in the event this emergency provision is invoked.

Section 26.2 Termination of Emergency. Upon the termination of the emergency, should valid grievances exist, they shall be processed in accordance with the provisions outlined in the grievance procedure, and shall proceed from the point in the grievance procedure to which they (the grievance[s]) had properly progressed.

Section 26.3 Emergency Defined. "Emergency" shall be defined as any natural phenomenon or act of man which creates a condition of emergency beyond the capability of the affect local government to control and resolve, utilizing its locally available forces and resources, and any imminent threat of widespread or severe damage, personal injury and hardship, or loss of life and property resulting from any natural phenomenon or act of man.\

ARTICLE 27

SICK LEAVE AND VACATION BUY BACK

Section 27.1. Service Requirements. In addition to the maximum severance pay allowable by this Agreement, employees who have a minimum of 20 years of service credit with OP&FRS, or 23 years of service credit with PERS, may request to convert their unused sick leave and vacation leave hours earned.

Section 27.2. Conversion Available. Conversion of such leave shall be limited to a combined maximum of two hundred forty (240) hours of sick leave per year or a maximum of two hundred (200) hours of vacation leave per year, or any combination of both up to a maximum combined total of two hundred forty (240) hours per year. Only those hours of leaves accumulated while employed with the City may be converted under this Article. Enrolling in the sick/vacation leave cash out will not interfere with the employees' eligibility to earn a sick leave bonus.

Section 27.3. Requests for Conversions of Leave. Employees may make the request for the following distribution of the outstanding sum of accumulated sick time and vacation as follows.

- 1) written request to the employer at least ninety (90) calendar days in advance.
- 2) letter of understanding signed by the employee and employer that specifies, upon option selection, the final distribution (including all related payroll taxes and retirement

deduction, etc.), of converted leave calculated at current dollar value at time of request.

Section 27.4. Option 1:

Three years accumulated sick and vacation entitlement shall be divided equally over three (3) years payroll at current dollar value at time of request.

Option 2:

Two (2) years accumulated sick time and vacation entitlement shall be divided equally over two year payroll at current dollar value at time of request.

Option 3:

One (1) year accumulated sick time and vacation entitlement shall be divided over one (1) year payroll at current dollar value at time of request

Section 27.5 Calculations and Conditions for Leave Conversions. Upon notice from an employee for selecting the desired option, the following shall apply:

- 1) The employer will value accumulated time hours at the current effective rate;
- 2) Applicable percentages will be applied based upon the option selected. The buy-out value will be divided by appropriate remaining payrolls;
- 3) The employer and the employee will enter into an agreement setting the increased wages based upon the calculation;
- 4) any sick time or vacation entitlement required by the employee subsequent to “notification date” will be taken from subsequent sick time and vacation entitlement earned by the employee;
- 5) in the event of catastrophic illness or documented extenuating medical circumstances and upon the discretion of the Employer:
 - a) The agreement between the employee and employer shall be suspended
 - b) The employer shall restore the employee’s sick time and vacation entitlement distribution back to the beginning date of notification
 - c) payments already made to the Employee under the original agreement shall be subtracted

Section 27.6. Change in Pension Law Limitations on Conversion. If either of the pensions change from the present three highest year format, either party may re-open the contract to add additional options that take said changes into consideration.

ARTICLE 28

TERM OF AGREEMENT

Section 28.1 Term of Agreement, Notice to Negotiate. This collective bargaining agreement shall be effective upon its executions and shall continue through December 31, 2023, unless where specified otherwise, and unless either party gives written notice to the other party no earlier than one hundred and twenty (120) days prior to the expiration date nor later than sixty (60) days prior to the expiration date of the desire to terminate, modify, or negotiate a successor collective bargaining agreement.

Section 28.2 Waiver. The parties acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right to make demands and proposals on any subject matter not removed by law from the area of collective bargaining, and that the exercise of that right and opportunity are set forth in this Agreement. Therefore, the Employer and the Union, for the life of this Agreement, each voluntarily and unequivocally waives the right, and each agrees that the

City of Canfield – Utility Workers Union of America

1 other shall not be obligated to bargain collectively or individually with respect to any subject or
2 matter not specifically referred to or covered in the Agreement, even though such subjects or
3 matters may not have been within knowledge of either or both parties at the time they negotiated
4 or signed this Agreement. The provisions of this Agreement constitute the entire agreement
5 between the Employer and the Union. All prior agreements, either oral or written, are hereby
6 cancelled.

City of Canfield – Utility Workers Union of America

SIGNATURE PAGE

Entered into and signed this 13TH day of SEPT., 2023

FOR THE CITY OF CANFIELD

[Signature] 9-13-23
John A. Rapp 9/13/23

FOR UTILITY WORKERS UNION
OF AMERICA & LOCAL 425 (UWUA)

Dean Muggs 8-17-23
Jim [Signature] 8-18-23
Chf/Dean 8/17/2023
Frank Meznarich 9/19/23
UWUA National Representative